

2025:PHHC:000614



**IN THE PUNJAB AND HARYANA HIGH COURT AT
CHANDIGARH**

112

**CWP-35172-2024
Date of Decision: 07.01.2025**

SUMER SINGH

... Petitioner

VERSUS

STATE OF HARYANA AND OTHERS

... Respondents

CORAM: HON'BLE MR. JUSTICE VINOD S. BHARDWAJ.

Present: Ms. Mansi, Advocate
for the petitioner.

VINOD S. BHARDWAJ, J. (ORAL)

Prayer in the present petition is for directing the respondents to sanction/grant the benefit of 2nd and 3rd ACP Scale as he did not get any financial upgradation or promotion for more than 30 years i.e. from 22.11.1993 to 30.04.2024, alongwith all consequential benefits.

After arguing at some length, learned counsel for the petitioner submits that with regard to his grievance, the petitioner has submitted a representation dated 08.11.2024 (Annexure P-7) but the respondents did not pay any heed towards the same.

Notice of motion.

Ms. Tanisha Peshawaria, DAG, Haryana accepts notice on behalf of the respondents and prays for so me time to complete instructions and file response, if so advised.

Learned counsel for the petitioner, however, contends that she would be satisfied at this stage, in case respondent No.3-Deputy Commissioner, Faridabad, District Faridabad is directed to consider and decide the representation dated 08.11.2024 (Annexure P-7) submitted by the petitioner, by passing a speaking order in a time bound manner.

Learned State Counsel does not have any objection to the request made by learned counsel for the petitioner.

Accordingly, in view of the above; with the consent of the parties and without commenting anything on the merits of the case, the present petition is disposed of while directing respondent No.3 to consider and decide the representation dated 08.11.2024 (Annexure P-7) by passing a reasoned and speaking order after affording an opportunity of hearing to the respective parties within a period of four months of the receipt of certified copy of this order.

Needless to mention that upon considering the said representation, if any service benefit is found due and payable to the petitioner, the same shall be calculated and disbursed in favour of the petitioner within a further period of two months.

Petition stands disposed of accordingly.

JANUARY 07, 2025.
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(VINOD S. BHARDWAJ)
JUDGE

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No